Forestry England

Our ref: Nightingale Wood

4th November 2025

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Nightingale Wood
Partial Discharge of Condition (9) Design Code from previous application S/OUT/13/1555.

Dear Ed

Thank you for inviting us to comment on the application (partial discharge of condition 9 – Character Area Design Code from previous application S/OUT/13/1555).

Forestry England is responding in its capacity as manager of the Forestry Commission's land at Nightingale Wood. Previous consultation responses were provided 16th August 2016 to the supplementary planning document, 20th October 2023 and 18th June 2025 to the Strategic Design Code Consultation (copies of these are attached for reference). These responses are still relevant and do not appear to have been addressed so should therefore be considered in conjunction with this consultation response. Our concerns continue to be outlined below.

- Forestry England supports the principle of a new vehicle access into Nightingale Wood. The existing vehicle access to Nightingale Wood is via Nightingale Lane — a narrow, single-track road accessed through South Marston and which is shared with traffic accessing residential and commercial premises. Consultation with Swindon Borough Council and South Marston Parish Council, recognised the opportunity and need to divert visitor traffic away from Nightingale Lane would reduce traffic pressure, enhance safety, and support more sustainable travel by enabling safer shared use of the route for cyclists and pedestrians.

- The current Nightingale Edge Character Area Design Code does not include provision for the highway access referenced in **Condition 9d** of the Outline Planning Permission (S/OUT/13/1555/EDSN). That condition requires the Character Area

Design Code to include a proposed route to the eastern boundary to facilitate a highway link into Nightingale Wood within the appropriate Character Area Code. Based on our current site layout, no other Character Area Design Code is suitable for delivering this access.

- We have engaged with the developers and more recently discussed an alternative route and car park location which is preferable to FE and the developers but:
    - there is no formal agreement with the developers yet.
    - funding for the construction of the car park, we believe, should be met by developers.
    - The proposed location lies outside this and all other defined Character Area Design Codes. As the planning condition requiring the developer to provide highway access is tied to a Character Area Design Code, locating the access within Strategic Open Space may result in insufficient planning scrutiny and lack of enforceable design coordination.

- The landscape buffer between the proposed development and Nightingale Wood must be designed to supplement and reinforce the existing woodland boundary fence and hedgerow. It is essential that this buffer presents a clearly defined and robust edge that discourages informal or uncontrolled access into Nightingale Wood, ensuring that entry is restricted to the formalised, surfaced path access points only. The buffer should be designed in coordination with Forestry England to ensure compatibility with the existing woodland typology and management objectives.

- Nightingale Lane and the Bridleway are the two formal and established public access points into Nightingale Wood from the Nightingale Edge character area. Any proposals for additional access points are subject to formal consultation and agreement with Forestry England. Such access points, if deemed appropriate, would be strictly limited in number and must:
    - Be located and designed in coordination with Forestry England to connect directly to the existing surfaced path network within Nightingale Wood;
    - Incorporate design measures that support passive surveillance and discourage informal or unauthorised access;
    - Ensure the woodland boundary is clearly defined and protected to prevent encroachment and mitigate risks such as fly-tipping or anti-social behaviour.

Non-vehicular traffic routes within the development area need careful consideration. References to increasing “permeable access” for pedestrians and

cyclists raise some concerns, for example if these were to create multiple access points into the woodland this may generate unintended desire lines and increase anti-social behaviours – all of which have the potential to create longer term management burdens. Well considered design has the potential to reduce these pressures. More sensitive areas, such as the wet meadow, should be protected from development pressures. Tree safety within public access woodland should also be a design factor. Ash dieback is a current issue; any action that might increase public access to areas of ash woodland needs proper consideration. A corollary of this, is that if ash woodland is to be clear felled for safety reasons, these may offer better areas to locate additional car parking or internal roads that may be required and minimise loss of tree cover, which have been supplied previously.

The urban expansion on land adjoining the site provides both potential threats (for example by loss of habitat connectivity and the generation of anti-social behaviour) and opportunities. We are keen to work with Swindon Borough Council, the developers and other stakeholders to mitigate against harms and to take advantage of potential benefits. By doing so will demonstrate effective woodland management and align with sustainable development principles.

Service Connections
Nightingale Wood lacks key services and utilities such as water, power and broadband that are increasingly integral to managing sites with public access. The development of the adjoining land has the potential to enable the provision of these services, particularly if connection points could be provided near the car park so that it can be further developed as the main access hub. We request that potential connection points are included within the development and supplied by the developer.

Kind regards

C Hayes (signed digitally)
Development Manager (Estates Development)